Name of the Case	: Shankari Prasad vs. Union of India
Year of Judgement	: 1951
Popular Name	: —
Related Topic/Issue	: Parliament's power to amend the constitution
Related Article/Schedule	: 13 & 368

Supreme Court Judgement: It held that the parliament's amending power under Article 368 also includes the power to amend the fundamental rights guaranteed in Part III of the Constitution. Further, it said that a constitutional amendment act enacted to abridge or take away the fundamental rights is not void under Article 13(2). Therefore, the court upheld the validity of the 1st Amendment Act (1951), which curtailed the right to property by inserting Articles 31A and 31B.

Impact of the Judgement: In this judgement, the Supreme Court made a distinction between the legislative law (ordinary law) and the constituent law (constitutional amendment law). In other words, the court has separated the ordinary legislative power of the Parliament from that of its constituent power. It held that the word 'law' in Article 13(2) refers to an ordinary law and does not include a constituent law made under Article 368. Hence, it laid down that the Parliament can amend any provision of the constitution and rejected the view that the Fundamental Rights are inviolable. This judgement held the field for one and half decade (1951 to 1967). The Supreme Court re-affirmed the above judgement in the *Sajjan Singh* case[3] (1964). But the court overruled the above stand in the *Golak Nath* case[4] (1967).

Berubari Union Case (1960)

Name of the Case	: Berubari Union vs. Unknown[5]
Year of Judgement	: 1960
Popular Name	: —
Related Topic/Issue	: Cession of Indian Territory to a foreign state
Related Article/Schedule	: 3, 368 & First Schedule

Supreme Court Judgement: It ruled that the power of Parliament under Article 3 to diminish the area of a state does not cover cession of Indian territory to a foreign country. It stated that Article 3 deals with the internal adjustment inter se of the territories of the constituent states of the Indian Union. Hence, Indian territory can be ceded to a foreign state only by an amendment of the constitution under Article 368, providing for the alteration of the First Schedule. Further, the court held that the Preamble is not a part of the constitution.

Impact of the Judgement: This judgement led to the enactment of the 9th Amendment Act (1960). This amendment gave effect to the transfer of certain territory known as Berubari Union (West Bengal) to